Historical source: scan row 266

continued from the previous page

4. Marriage is forbidden within certain degrees of blood. By the law of Mefo ~~_(Lestieux_~~ **(Lestieux** xvii,) which, by the act 1567; c. 15. has been adopted by us, fecomed in bloods and all remote degrees, may all lay fully marry. By recorded blood are much first cufist. Marriage in the direct line is forbidden _in infibrions_ a as it is also in the coherent line in the fiscal case where one of the parties in _is too_, _parents to the other, as grand-uncle, great grand-uncles, &c with refect to be grand dressing. See. The fans degrees are prohibited in condignants, are prohibited in affinity; which is the tie arising from marriage, betwixt one of the married pair, and the blood relations of the other. Marriage also, where other of the parties are naturally unfit for generation, or funds already marrich but a third person, i.i (fójé per null). 5. To prevent ~~bigany~~ **bigamy** and ~~nectitious~~ **incestuous** marriages, the church has introduced ~~production~~ **publication** of ~~banks~~ **banns** which is the ceremony of publishing the names and ~~obligations~~ **designations** of ~~their~~ **those** who intend to ~~intermany~~ **intermarry,** in the churches where the ~~brilde~~ **bride** and ~~bridgeroom edides,~~ **bridegroom reside,** after the congregation is ~~afforded~~ **assembled** for divine ~~ferries;~~ **service;** that all ~~parties~~ **persons** who know any ~~collection on~~ **objection to** the marriage may offer ~~its.~~ **it.** When the order of the church is ~~the foresee~~ **observed,** the marriage is called ~~equalers,~~ **regular;** when otherwise, ~~clandligne.~~ **clandestine.** Marriage is valid when entered into in either of ~~them~~ **these** ways; but when ~~clandeline,~~ **clandestine,** there are certain penalties imposed upon the parties as well as the ~~celebrate~~ **celebrant** and ~~winters.~~ **witnesses.** 6. By marriage, a ~~factory~~ **society** is created between the married pair, which draws after it a mutual ~~commute nation~~ **communication** of their civil interests, in as far as ~~in excellent~~ **is necessary** for maintaining it. As the ~~footey falls~~ **society lasts** only for the ~~joints~~ **joint** lives of the ~~fact;~~ **focii;** therefore ~~they have~~ **rights** that have the nature of a perpetuity, which our law ~~flyks _heritable_,~~ **flies heritable,** are not brought under the partnership or communion of ~~goods~~ **goods;** as a ~~local efter,~~ **land-ellate,** or ~~bookear by~~ **bonds bearing** a yearly interest: it is only ~~movable~~ **moveable** subjects, or the fruits produced by heritable ~~objects~~ **subjects** during the ~~marriages,~~ **marriage,** that become common to ~~me~~ **man** and wife. 7. The ~~hufland,~~ **husband,** as the head of the wife, has the ~~fate~~ **sole** right of managing the ~~good~~ **goods** in ~~communities,~~ **communion,** which is called ~~_jus murals_.~~ **jus mariti.** This ~~night~~ **right** is ~~to holdout,~~ **so absolute,** that ~~in~~ **it** bears but little ~~refremble~~ **resemblance** to ~~aright~~ **a right** of administering a common object. For the husband can, in virtue thereof, till, or even gift, at his ~~placcins,~~ **pleasure,** the whole goods falling under communion; and his creditors may affect them for the payment of his ~~parents' duties~~ **proper debts:** for that the jus ~~murals~~ **mariti** carries all the characters of an ~~affigation,~~ **affiliation,** by the wife to her husband, of her ~~moveable else. I wanted _life just here~~ **movable effects. It arises ipso jure from** the ~~marriages~~ **marriage;** and therefore needs no other condition than. But ~~stronger~~ **a stranger** may convey an ~~offate~~ **effect** to a wife, ~~fo~~ **so** as it shall not be ~~falsely on~~ **subject to** the ~~husband, administration~~ **husband's administration;** or the ~~hubhand~~ **husband** himself may, in the ~~marriage contries, economie~~ **marriage-contract, renounce** his ~~_ju murarit_~~ **jus mariti** in all or any part of his ~~wife's moveable effect.~~ **wife's movable effects.** 8. From this right are excepted paraphernal goods, which, as the word is understood in our law, ~~compaheute wife~~ **comprehends the wife's** wearing apparel, and the ornaments proper to her ~~perfus in such neckars, earring, breath~~ **person; as necklaces, ear-rings, breast** or arm jewels, buckles, ~~etc. There~~ **&c. These** are neither alienable by the ~~hufland, was affected~~ **husband, nor affectable** by his ~~children.~~ **creditors.** Things of ~~promotions uile~~ **promiscuous use** to ~~hufland~~ **husband** and ~~wills,~~ **wife,** as plate, medals, &c. may become paraphernal, by the ~~hufland's~~ **husband's** giving them to the wife, at or before ~~marringe;~~ **marriage;** but they are paraphernal only in regard to that ~~hufland,~~ **husband** who gave them as ~~fuch,~~ **such,** and are ~~eltemem~~ **esteemed** common movables, if the wife, ~~whole _paraphrma_ as the way~~ **whose parapherna they** were, ~~the~~ **be** afterwards married to a ~~four hufband;~~ **second husband;** unless he ~~fault~~ **fail** in the ~~fame~~ **same** manner appropriate them to ~~later.~~ **her.** 9. If the right of the hufland to the ~~wife's~~ **wife's** moveable Bunders afefiction, is burdened with the morevable debts contracted feeling the by before marriages, and as the right is universal, by marritis. So alls in his burdens; for the reason to how movable debts, though they should far exceed her movieable effects. Yet the hufland is considered as the true doctor in his ~~wife's~~ **wife's** debts. In all all persons for payments, file is the proper defender; the hufland is only cited for his interest, that is, as crime to bear, and administrative of the footing goods. As long therefore as the marriage is dilofened, and the footy goods thereby (after a division, the hufland is no further concerned), the fines belonging to his deceased, wife; and consequently is no longer liable to pay her debts, which much life recovered from her representatives, or her female relate. 10. This obligation upon the ~~hufland~~ **husband** is, however, perpetuated against him ~~[1.]~~ **(1.)** Where his proper ~~dissate tended a red~~ **estate, real** or personal, has been affected, during the ~~marriages paid and~~ **marriage,** by complete legal ~~diligence~~ **diligence;** in which ~~cafe,~~ **case,** the ~~hufhusband, bund mulls,~~ **husband must,** by the common rule of law, relieve his property from the ~~number~~ **burden** with which it ~~lands~~ **stands** charged; ~~and~~ **but** the unconditional ~~gace~~ **diligence** against his person is not ~~influence~~ **sufficient** to perpetuate the ~~religious;~~ **obligation;** nor even ~~consulate~~ **incomplete** diligence against his ~~class.~~ **estate.** (2.) The ~~hufand contains~~ **husband continues** liable, even after the ~~wife's~~ **wife's** death, ~~no fo~~ **in so** far as he is ~~because we~~ **lucratus or** profited by

her ~~class :~~ **estate:** Still, however, the law does ~~one~~ **not** consider a ~~hufland~~ **husband** who has got but a moderate ~~teacher~~ **tocher** with the wife as ~~_lucrative_~~ **lucratus** by the marriage; it is the excess only which it considers as ~~lucrons,~~ **lucrum,** and that must be ~~eliminated~~ **estimated** by the quality of the parties and their ~~own~~ condition of ~~life—As~~ **life.—As** he was at ~~my~~ **no** time the proper ~~debate~~ **debtor** in his ~~wife's~~ **wife's** moveable ~~there,~~ **debts;** therefore, though he should be ~~lucratas,~~ **lucratus,** he ~~is~~ **is,** after the ~~difoloton,~~ **dissolution,** only liable for them ~~_fufuldurie_,~~ **fiduciarie,** i. e. if her ~~now feature alleats~~ **own separate estate** is not sufficient to pay them off. 11. Where the wife is ~~deborn~~ **debtor** in that fort of ~~debts, while~~ **debt, which,** if it had been due to **her, would have excluded** the ~~trouble, excelled the _juu mariis, e.g._~~ **juu marilis, e.g.** in bonds bearing intellect, which, as we ~~fault afterward~~ **shall afterwards** fee (claims, for contain particulars as the results of the hufland and wife, ~~postwithstanding~~ **notwithstanding** of the enactment of the flatature 1661, which renders them movement in certain other reflects, like hufland is liable only for the bypassing intents, and chule that may grow upon the debt during the marriages; because the obligation for her debts must be communicated to the intent it, has in its class. Is the hufland alone who is liable in personal diligence for his wife's debts, while the marriages lobbifies the wife, who as the greater debtor, is free from all political execution upon them while file is ~~_volite vivo_.~~ **volite vivo.** 12. The ~~hufland the marriages~~ **husband by marriage** becomes the ~~perp . The fifth tul~~ **perpetual** curator of the wife. From this right it arises, and is the title "must endure" eug.

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- Scan: `page-0266-dfbe51d09127.jpg`, 600 x 781 px
- Image SHA-256: `dfbe51d091279145e37f51fdee7d7b6903c89ea6d64f90fb27913a7d0437e246`
- Extraction: `nvidia/nemotron-3.5-parse`, raw reply `artifacts/extract/raw/0266.json`
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